

Given the significant injuries listed, including quadriplegia, the future medical expenses may be significant. Therefore, the Court estimates past medical at \$1 million and future medical at \$5 million.

Overall, Plaintiff's potential recovery is approximately \$7.5 million.

Here, Ball was Plaintiff's surgeon and if found liable, could be responsible for a significant portion of Plaintiff's damages. On the other hand, Ball has provided a declaration from the medical expert stating that Ball acted within the standard of care. (Spoonamore dec.)

As to the second factor, Ball's counsel provided a declaration stating that Ball settled with Plaintiffs for \$900,000. (Picchi dec. ¶7.)

As to the third factor, the Court does not have information on how the settlement would be split between Plaintiffs who are husband and wife, but that information is not likely to change the Court's analysis here.

As to the fourth factor, the Court is aware that a settlor should pay less in settlement than he would if he were found liable after a trial.

As to the fifth factor, Ball has a \$1 million insurance policy. (Gray dec. ex. E: Response 4.1.) No information has been provided on Ball's financial condition, however, the Court notes that there is no showing that Ball has stopped working or is insolvent. Since Ball did not settle for policy limits and has not shown his financial condition, the Court assumes that Ball had the ability to pay more.

As to the sixth factor, there is no evidence of fraud or collusion.

Having considered all the factors, the Court finds that the settlement is not within the ballpark. There are open questions about the amount of past and future medical Plaintiff will require. Ball's settlement with Plaintiff potentially covers Plaintiff's lost wages and arguably his pain and suffering, but it does not cover past or future medical bills. Given the serious nature of Plaintiff's injury, his medical bills might be significant. While Ball has provided an expert stating that he acted within the standard of care (and thus would not be liable), it is also likely that Plaintiff's have an expert to state otherwise, which means the chance of Ball being found liable at trial is a real possibility. Overall, the Court finds that Ball's settlement is outside the ballpark in this case.

9. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
BE RELIEVED AS COUNSEL FOR AUDREY WELSCH
FILED BY:
TENTATIVE RULING:

Parties to appear. Counsel has not provided any information as to the reasons for this Motion. The

Court notes that the parties are actively litigating in Family Court, and Plaintiff is represented there by other counsel.

10. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC

FILED BY: ASSIGNMENT AMERICA, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

11. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC
JOHN MUIR HEALTHS STATEMENT OF NON-OPPOSITION & JOINDER RE DEF ASSIGNMENT
AMERICA, LLCs MOTION TO COMPEL ARBITRATION
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C26-00608
CASE NAME: JESSICA PHILAVONG VS. LUIS GUZMAN
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: GUZMAN, LUIS

TENTATIVE RULING:

The Motion to Strike Portions of the Complaint filed by Plaintiffs Jessica Philavong and Kelly Philavong, brought by Defendants Guzman Property LLC and Luis Guzman, is **denied**.

Plaintiffs shall prepare the order and serve notice of entry. Defendants shall have 10 days from service of written notice of entry of the order to answer the complaint.

Background

This is a landlord-tenant habitability case arising from Plaintiffs Jessica Philavong and Kelly Philavong's tenancy at 758 S 40th Street in Richmond (the Property). (See Plfs.' 8/13/26 Complaint, ¶¶ 1, 9.) Defendants are Guzman Property LLC and Luis Guzman who allegedly owned, managed, and controlled the Property. (*Id.*, ¶¶ 2-4, 10,)

Plaintiffs entered into a written lease for the Property on March 17, 2017, for \$1,580.00 per month. (Compl., ¶ 9). Plaintiffs allege that Defendants failed to maintain the property and allowed substantial, longstanding habitability defects to exist, including a broken stove and refrigerator, broken heater, insufficient trash receptacles, water leaks and intrusions, lack of separate utility meters, and general dilapidation. (*Id.*, ¶¶ 11-12, 14, 58.) Despite verbal and written repair requests, and an August 19, 2024 Notice of Violation and/or Notice to Abate issued by City of Richmond Code Enforcement, Defendants failed and refused to remediate the conditions, and instead continued to